



**STATE OF TENNESSEE
DEPARTMENT OF FINANCE AND ADMINISTRATION
DIVISION OF HEALTH CARE FINANCE AND ADMINISTRATION**

**ELECTRONIC REMITTANCE PAYMENT/ADVICE
RECEIVER AGREEMENT
(ANSI ASC X12N 835-5010 Transaction)**

1. TYPE OF AUTHORIZATION: New ☐ Change ☐ Cancel ☐

2. PARTIES:

This Electronic Remittance Payment/Advice Receiver Agreement (Agreement) is between ~~State~~ of Tennessee, Department of Finance and Administration, Division of Health Care Finance and Administration (HCFA), and the HCFA Provider identified below (Provider or Provider/Receiver). Any third party (such as a health care clearinghouse, billing service ~~on~~ another provider) authorized by the Provider will be referred to as "Receiver".

Privacy Statement

HCFA requires the information requested on this form for purposes of identification and document processing. Providing the information requested on this form is required; otherwise, this form will be unapproved for processing.

3. PURPOSE & PROVIDER INFORMATION:

The sole purpose of this Agreement is for electronic remittance payment and advice. The Provider agrees to provide the requested information in order to verify qualifications to act as a Receiver of the Electronic Remittance Payment/Advice (ERA) 835 Transaction data from HCFA. An active HCFA Provider must complete and submit the Agreement in order to receive ANSI ASC X12N ERA 835 Transaction data from HCFA. A notification of acknowledgement will be sent either by e-mail or by letter to the provider. Any non-providers (such as a health care clearinghouse or billing service) may receive an ERA 835 Transaction data (per the Provider's instructions).

Note: The following Provider information must be current and match the existing information on file with HCFA for approval. Full legal names, NPI, Provider Number and/or Group Numbers are required. To verify if the provider information is current, contact HCFA Provider Networks at (800) 852-2683.

PROVIDER (TRADING PARTNER) DEMOGRAPHICS -

PROVIDER NAME (full legal):		PROVIDER NUMBER:	
GROUP PROVIDER NAME (full legal):		GROUP PROVIDER NUMBER:	
NATIONAL PROVIDER IDENTIFIER (NPI)::			
MEDICAID ID#:			
TAX ID#:			
PROVIDER SERVICE ADDRESS (number, street):	CITY	STATE	ZIP CODE
CONTACT PERSON:			
CONTACT PERSON ADDRESS (number, street):	CITY	STATE	ZIP CODE
CONTACT PERSON PHONE #:		CONTACT EMAIL ADDRESS:	

4. ERA 835 RECEIVER INFORMATION:

The ERA 835 Receivers can be either the Provider or an outside party (such as a health care clearinghouse, billing service or another provider). A Provider can designate an entity (such as a health care clearinghouse, billing service or another provider) to receive the ERA 835 Transaction data. If a Provider designates an outside party to receive the ERA 835 Transaction data from HCFA, the Provider must have a business associate agreement with the party/receiver. outside

Note: A Provider designated as a Receiver will need an active NPI and Provider Billing (Rendering Provider Numbers may not be used). The authorizing Provider must complete this section.

ERA RECEIVER:

RECEIVER NAME (full legal):		RECEIVER NUMBER:	
GROUP RECEIVER NAME (full legal):		GROUP RECEIVER NUMBER:	
RECEIVER'S NPI:			
TN MEDICAID ID#:			
TAX ID#:			

RECEIVER SERVICE ADDRESS (number, street): CITY STATE ZIP CODE

CONTACT PERSON:

CONTACT PERSON ADDRESS (number, street): CITY STATE ZIP CODE

CONTACT PERSON PHONE #: CONTACT EMAIL ADDRESS:

Provider must check appropriate box(es) below:

- ☐ I hereby authorize HCFA to generate my 835 Transaction data.
- ☐ I hereby authorize HCFA to update the previous ERA 835 Receiver Agreement with the information on this form.
- ☐ I hereby authorize HCFA to cancel my ERA 835 Transaction authorization.

5. CHANGE IN RECEIVING ELECTRONIC 835 TRANSACTION:

The Provider/Receiver and HCFA agree that any changes in Provider/Receiver status, which may affect eligibility to receive the ERA 835 Transaction data, shall be promptly communicated to each party.

6. HIPAA/HITECH:

The Provider/Receiver agrees to maintain adequate administrative, physical and technical, safeguards to protect the privacy, security and confidentiality of protected health information (PHI) in accordance with the Health Insurance Portability and Accountability Act of 1996 (HIPAA), the Health Information for Economic and Clinical Health Act of 2009 (HITECH), as well as federal and State statutes and/or regulations. The Provider/Receiver agrees to report any breach of security or unlawful disclosure of PHI to HCFA's Privacy Office immediately upon becoming aware of such breach or disclosure.

7. SCOPE OF SERVICE:

HCFA agrees to supply Provider/Receiver with Electronic Remittance Payment/Advice 835 Transaction data for adjudicated claims for Providers who have authorized HCFA to send such information.

8. PROVIDER OBLIGATIONS:

The Provider shall:

- (a) Complete and submit to HCFA an Electronic Remittance Payment/Advice Receiver Agreement form for any additional receivers of the ERA 835 Transaction file.
- (b) Ensure that a current and complete Electronic Remittance Payment/Advice Receiver Agreement form is on file with HCFA.
- (c) Not provide the data supplied under the Agreement to any third party except the applicable agents for whom the Provider has authorized to provide billing collection and/or reconciliation services and which have a business associate agreement in effect with the Provider.

- (d) Acknowledge that ERA 835 Transaction data is confidential information owned by HCFA and/or applicable providers. This provision shall survive the expiration of this Agreement.
- (e) Regardless of whether the Provider employs a third party Receiver to access the ERA 835 Transaction data, the Provider agrees to retain all liability and responsibility for the receipt of all Electronic Remittance Payment/Advice (ERA 835 Transaction data) information.
- (f) The Provider agrees to be responsible for the review and verification of the accuracy of claims payment information promptly upon the receipt of any payment. The Provider agrees to seek correction of any claim errors through the appropriate processes as designated at <http://www.tn.gov/commerce/tenncare/PCIR.shtml> and, for Department of Intellectual and Developmental Disabilities' (DIDD) providers, <http://www.tn.gov/didd/index.shtml>.

9. EFFECTIVE DATE:

This Agreement shall become effective upon the last date set out in the signature block below.

10. TERMINATION:

HCFA or Provider may terminate this agreement with or without cause by giving thirty (30) days prior written notice of intent to terminate, and the Provider has no right to appeal such termination by HCFA.

11. STATE LIABILITY:

The State will have no liability except as specifically provided in this Agreement.

12. FORCE MAJEURE:

The obligations of the parties to this Agreement are subject to prevention by causes beyond the parties' control that could not be avoided by the exercise of due care including, but not limited to, natural disasters, riots, wars, epidemics, or any other similar cause.

13. STATE AND FEDERAL COMPLIANCE:

The Contractor shall comply with all applicable State and Federal laws and regulations in the performance of this Contract.

14. GOVERNING LAW:

This Contract shall be governed by and construed in accordance with the laws of the State of Tennessee. The Contractor agrees that it will be subject to the exclusive jurisdiction of the courts of the State of Tennessee in actions that may arise under this Contract. The Contractor acknowledges and agrees that any rights or claims against the State of Tennessee or its employees hereunder, and any remedies arising therefrom, shall be subject to and limited to those rights and remedies, if any, available under Tennessee Code Annotated, Sections 9-8-101 through 9-8-407.

15. CONFIDENTIALITY OF RECORDS:

Strict standards of confidentiality of records and information shall be maintained in accordance with applicable state and federal law. All material and information, regardless of form, medium or method of communication, provided to the Contractor by the State or acquired by the Contractor on behalf of the State will be regarded as confidential information in accordance with the provisions of applicable state and federal law, state and federal rules and regulations,

departmental policy, and ethical standards. Such confidential information shall not be disclosed, and all necessary steps shall be taken by the Contractor to safeguard the confidentiality of such material or information in conformance with applicable state and federal law, state and federal rules and regulations, departmental policy, and ethical standards.

The Contractor's obligations under this section do not apply to information in the public domain; entering the public domain but not from a breach by the Contractor of this Contract; previously possessed by the Contractor without written obligations to the State to protect it; acquired by the Contractor without written restrictions against disclosure from a third party which, to the Contractor's knowledge, is free to disclose the information; independently developed by the Contractor without the use of the State's information; or, disclosed by the State to others without restrictions against disclosure. Nothing in this paragraph shall permit Contractor to disclose any information that is confidential under federal or state law or regulations, regardless of whether it has been disclosed or made available to the Contractor due to intentional or negligent actions or inactions of agents of the State or third parties.

16. AGREEMENT BETWEEN PROVIDER AND ADDITIONAL THIRD PARTY RECEIVER (IF OTHER THAN THE PROVIDER OF SERVICE):

The Provider stipulates that any agreements with a Receiver to receive HCFA's ERA 835 Transaction data shall be in conformance with HIPAA/HITECH and federal and State laws governing electronic transactions and shall contain provisions including, but not limited to, the following:

- (a) The Provider shall specifically designate the Receiver as the agent of the Provider for receiving ERA 835 Transaction data for the Provider.
- (b) The parties agree that HCFA may make available the ERA 835 Transaction data to an outside entity as long as the agreement between the Provider and the Receiver remains in existence and in effect.
- (c) The Provider shall notify HCFA in writing immediately upon any change in or termination of Provider's and Receiver's Agreement.

17. ELECTRONIC SIGNATURE ACT and UNIFORM ELECTRONIC TRANSACTIONS ACT. Unless otherwise agreed, HCFA and Provider agree that Provider's electronic transmission of this Agreement signifies the Provider's valid execution and adoption with the intent to sign and that this Agreement is fully enforceable.

18. Upon completing this Agreement, please "Save As" and email to HCFA.ERA@tn.gov.